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DEFENSE LOGISTICS AGENCY
HEADQUARTERS
8725 JOHN J. KINGMAN ROAD
FORT BELVOIR, VIRGINIA 22060-6221

JA 26-0030

Justification for Other than Full and Open Competition
Under Defense Logistics Agency Energy Direct Delivery Fuels Purchase Program 1.6L
Eastern Europe

1. Summary/Introduction:

The Defense Logistics Agency (DLA) Energy is the Integrated Material Manager and contracting activity for petroleum products and services for the Department of Defense (DoD). This Justification and Approval (J&A) documents the use of other than full and open competition to award a new firm-fixed-price contract line item (CLIN 0065) under contract SPE60524D9403 to Stonewin International, LLC, for the support of Operation Epic Fury. The authority for this action is in accordance with (IAW) FAR 6.302-2, "Unusual and Compelling Urgency." Additionally, this action is supported by the circumstances described in FAR 6.302-1, "Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements."

The original contract's period of performance is May 1, 2024, through November 30, 2027, with a six-month option to extend performance to May 30, 2028, or for the duration. The modification to include the new requirement entails a period of performance from April 3, 2026, through November 30, 2027. The total estimated value of this contract award is \$6,875,000.00. This J&A will be publicized after award in accordance with FAR 6.303-1(e). Due to the unusual and compelling nature of this requirement, the preparation and approval of this J&A prior to award would have unreasonably delayed the acquisition.

A significant logistical constraint at [REDACTED] created an urgent and compelling need for a new fueling solution to support the U.S. Army's ongoing Epic Fury operations. The airbase's policy, which strictly prohibits the transport of fuel from the civilian to the military side of the airport, halted initial efforts to supply necessary Aviation Fuel (JA1). This restriction prompted [REDACTED] of the 21st Theater Sustainment Command, along with his colleague [REDACTED] to find an alternative that complied with the airport's regulations. On March 31, 2026, [REDACTED] contacted [REDACTED] a Contracting Officer for DLA Energy Europe and Africa, to address the issue. [REDACTED] then engaged [REDACTED] a DLA Energy Customer Account Specialist, to explore viable options for delivering the fuel directly within the military side of the airbase

DLA Energy proposed a solution to bypass this restriction by leveraging an existing contract. They suggested modifying Stonewin International, LLC's contract, SPE60524D9403, which was already in place for the delivery of JP8 fuel. Under this existing contract, the contractor delivered JP8 directly onto the military side of the airbase into military trucks. The proposed modification

[REDACTED]
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would add the JA1 requirement to this contract, allowing the contractor to use the same established delivery mechanism for the new fuel, adhering to airport policy.

Following DLA Energy's guidance, the activity officially modified the existing 2053 form for contract SPE60524D9403 on March 31, 2026, to include the JA1 requirement. The modification was reviewed by [REDACTED] and [REDACTED] and was formally approved as an "urgent and compelling" need due to its importance for the Epic Fury operations.

On April 1, 2026, [REDACTED] communicated the requirement to Stonewin International, LLC to confirm their support and negotiate pricing. The contractor affirmed their ability to meet the demand and provided a price of \$6.25 per gallon. Subsequently, [REDACTED] directed Contract Specialist (CS) [REDACTED] to draft the official modification in the Enterprise Business System (EBS), adding a new Contract Line-Item Number (CLIN) for 1,100,000 gallons of JA1.

By April 3, 2026, the contract modification was completed by [REDACTED] reviewed by [REDACTED] and the formal SF30 document was sent to the contractor for signature. The total estimated value of the modification is \$6,875,000.

2. Nature and/or description of the action being approved (FAR 6.104-1(a)(2)):

This action is a sole-source contract modification awarded under the justification of Unusual and Compelling Urgency, in accordance with FAR 6.302-2. The DLA Energy requires continued support for the acquisition of JA1 fuel for delivery to warfighter locations in [REDACTED] on a basis of other than full and open competition. This award was executed to ensure the uninterrupted delivery of critical fuel to military forces operating in the region by modifying an existing contract Aviation Fuel requirement held by Stonewin International, LLC.

The contractor, Stonewin International, LLC is the sole vendor under contract for [REDACTED] cleared to supply Aviation Fuel and capable of delivering the requirements stated herein. The contract is supported and funded using the Defense Working Capital Fund. The contract, SPE60524D9403, awarded to Stonewin International, LLC was executed on March 26, 2024, with a 48-month ordering period from May 01, 2024, to November 30, 2027, at a total estimated cost of \$36,245,339.28. A six-month extension option is available, which would extend the ordering period to May 30, 2028, at an additional cost of \$4,530,667.41 if exercised.

3. Description of supplies or services required to meet the agency's need (including estimated value) (FAR 6.104-1(a)(3)):

A. This contract requirement is for 1,100,000 U.S. gallons of JA1 aviation fuel to be transported from commercial trucks to military side of the airport. The total estimated value of this action is approximately \$6,875,000 (1,100,000 gallons at an estimated cost of \$6.250000 per gallon). The period of performance will be from April 03, 2026, through November 30, 2027, with a 30-day delivery carry-over period. The service being procured is considered commercial service in accordance with FAR 2.101.

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The 19-month estimated quantity and total estimated cost of the Contract is \$6,875,000 as reflected in table-1 below:

VENDOR	CLIN (EBS)	LOCATION	PRODUCT	ANNUAL QUANTITY (USG)	UNIT PRICE (USD)	EXTENDED PRICE (USD)	TOTAL (USD)
Stonewin International, LLC	0065		Aviation Jet Fuel (JA1)	1,100,000	\$6.250000	\$6,875,000	
				1,100,000			\$6,875,000

4. Identification of the statutory authority permitting other than full and open competition (FAR 6.104-1(a)(4)):

The authority that permits other than full and open competition for this procurement is 10 U.S.C. § 3204(a)(2), as implemented by FAR 6.302-2. Under this authority an agency may use other than full and open competition if there is an unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals; full and open competition need not be provided for, and delay in award of a contract would result in serious injury to the Government.

5. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires using the authority cited (FAR 6.104-1(a)(5)):

This action is justified under the authority of FAR 6.302-2, "Unusual and Compelling Urgency," as modifying the existing contract with Stonewin International, LLC, was the only viable method to prevent a critical disruption to the U.S. Army's Epic Fury operations. The urgency was created by an unforeseen and insurmountable logistical constraint imposed by local airport policy at [REDACTED] not by a lack of advance procurement planning. Delaying this action to conduct a competitive procurement would have resulted in an immediate and unacceptable interruption of mission critical fuel supply to military forces

The requirement for Aviation Fuel (JA1) to support Operation Epic Fury was immediate and non-negotiable. However, a significant and unanticipated obstacle arose from a standing policy at [REDACTED] which strictly prohibits the transportation of fuel from the civilian side to the military side of the airport, which halted the intended delivery of JA1 by an into-plane-contractor. This local regulation, which is beyond the U.S. Government's control, rendered potential delivery methods unusable and created a sudden urgency. Without a compliant delivery solution, the ongoing military operation faced a direct and immediate threat of being halted due to a lack of essential fuel.

This situation meets the criteria for "unusual and compelling urgency" as defined in FAR 6.302-2. The harm to the Government from any delay would be severe, directly impacting operational readiness and compromising the objectives of Operation Epic Fury. Stonewin International, LLC, is uniquely positioned as the sole responsible source because they are the only contractor with the existing infrastructure, clearances, and, most importantly, the established and approved procedures

Source Selection Information – See FAR 2.101 and 3.104

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to deliver fuel directly onto the military side of [REDACTED] in compliance with the restrictive airport policy. Modifying their existing contract was the only feasible way to leverage these pre-existing logistics to immediately fulfill the JA1 requirement.

6. Description of the efforts made to ensure that offers are/were solicited from as many potential sources as is/was practicable, including whether a notice was or will be publicized as required by Subpart 5.1 and, if not, which exception under 5.101(b) applies (FAR 6.104-1(a)(6)):

This contract action was not synopsisized due to the unusual and compelling urgency. Pursuant to FAR 5.202(a)(2), DLA Energy did not publicize a notice of this contract action because it is being conducted under the authority of FAR 6.302-2, unusual and compelling urgency exception to full and open competition. The Government would have been seriously injured if it was forced to comply with the time periods set forth in FAR 5.203. Because of the urgent need for uninterrupted fuel supply to [REDACTED] DLA Energy modified the existing contract held by Stonewin International, LLC awarded CLIN 0065 to Stonewin International, LLC to prevent mission degradation and imminent harm to the government.

7. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable (FAR 6.104-1(a)(7)):

To determine price reasonableness, the Contracting Officer used the price analysis techniques described at FAR 15.404-1(b) and FAR 31.201-3 using data other than certified cost of pricing data from the contractor to justify the proposed rate. The data below was evaluated and utilized to determine the proposed rate fair and reasonable:

The final negotiated price of \$6.25/USG is determined to be fair and reasonable pursuant to my authority as a Contracting Officer for the United States Government. While higher than standard commercial benchmarks, the contractor has provided sufficient data to justify the premium. The price analysis for this action was conducted in accordance with Federal Acquisition Regulation (FAR) Part 31.201-3, which defines a cost as reasonable if it does not exceed what a prudent person would pay in a comparative environment for similar items:

- i. The urgent and compelling need driven by Operation Epic Fury.
- ii. The mission-essential nature of the fuel, where supply continuity is paramount.
- iii. The unique operational requirement for a surge capacity up to 1,500% above normal levels.
- iv. The inclusion of mandatory local government fees not present in standard market rates.
- v. The achievement of significant savings based on negotiation.

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The combination of these unique circumstances, which are far from a standard competitive environment, supports the reasonableness of the final price.

8. Description of the market research conducted and the results or a statement of the reason market research was not conducted (FAR 6.104-1(a)(8)):

It was determined the time it would take to conduct market research would result in serious injury to the government and thus DLA-Energy deemed the request urgent and compelling due to its direct support of Epic Fury operations. Given that the airport, a facility not governed by DLA-Energy, enforces strict movement protocols between its civil and military sectors, compliance with its established policies and guidelines is paramount. The inability for the into-plane contractor to deliver JA1, due to airport guidelines, was identified as critically detrimental to Mission Epic Fury. DLA-Energy subsequently determined that the current contractor, Stonewin International, LLC, was uniquely positioned to manage these activities, owing to their ongoing aviation fuel delivery operations at [REDACTED]. Their satisfactory past performance, not only on this specific contract but also across other Eastern European aviation fuel locations, further supported this determination.

9. Any other facts supporting the use of other than full and open competition, such as (FAR 6.104-1(a)(9)):

(i) Explanation of why technical data packages, specifications, engineering descriptions, statements of work, or purchase descriptions suitable for full and open competition have not been developed or are not available.

Not Applicable

(ii) When 6.103-1 is cited for follow-on acquisitions as described in 6.103-1(c), an estimate of the cost to the Government that would be duplicated and how the estimate was derived.

Not Applicable

(iii) When 6.103-2 is cited, estimated cost, or other rationale as to the extent and nature of the harm to the Government.

See Section 5 above for an explanation of the harm to the Government if this modification did not occur and was not awarded. The ordering period of April 03, 2026, through November 30, 2027, is necessary to provide an uninterrupted fuel supply to support Operation Epic Fury for its planned duration and to mitigate the significant administrative burden of soliciting and executing mission critical one-time requirements to support daily operations at [REDACTED]. The risk of soliciting multiple one-time requirements to vendors(s) unaware of the current airport operations would potentially cause delays in access to the base and delivery constraints due to airport guidelines as discussed in section 5.

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10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition (FAR 6.104-1(a)(10)):

No other sources were contacted, as DLA Energy is aware of the exclusive authorization granted to Stonewin International, LLC. Additionally, see Section 6 above.

11. Actions that may be taken to remove or overcome barriers to competition before any subsequent acquisition for the supplies or services are required (FAR 6.104-1(a)(11)):

DLA-Energy does not have the authority to alter the policies of [REDACTED] as it is a military installation governed by its own standards. However, we remain committed to our partnership with the U.S. Army and will continue to work closely with the airbase to adapt to any changes in their logistical guidelines that may affect future operations.

I hereby certify that the data which forms the basis for this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]
Contracting Specialist

ORLANDO MERRITT
Contracting Officer